SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Writ Petition (Civil) No. 118 of 2016 (YEAR: 2017)

CORAM: J.S. KHEHAR, KURIAN JOSEPH, R.F. NARIMAN, U.U. LALIT, S. ABDUL NAZEER

Shayara Bano
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Muslim Personal Law (Shariat) Application Act, 1937, Constitution of India
Sections:	Article 14, Article 21, Article 25

JUDICIAL HEADNOTE & SUMMARY

By a 3:2 majority, held instantaneous Triple Talaq (Talaq-e-Biddat) void and unconstitutional, establishing the doctrine of manifest arbitrariness under Article 14.

RATIO DECIDENDI

The Court held that: By a 3:2 majority, held instantaneous Triple Talaq (Talaq-e-Biddat) void and unconstitutional, establishing the doctrine of manifest arbitrariness under Article 14. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Shayara Bano v. Union of India (Writ Petition (Civil) No. 118 of 2016) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Muslim Personal Law (Shariat) Application Act, 1937, Constitution of India, particularly Article 14, Article 21, Article 25. By a 3:2 majority, held instantaneous Triple Talaq (Talaq-e-Biddat) void and unconstitutional, establishing the doctrine of manifest arbitrariness under Article 14.

OPERATIVE ORDER

ORDER: Decided